

as applying to the entire contract, unless each party was represented by counsel in the negotiation and execution of the contract, and the fact of that representation is specified in the contract.

Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit.

Civ. Code § 1717(a)

The contract in this matter is a Stipulation for Entry of Judgment and Judgment on Stipulation filed in Shasta County Case No. 105365 that was recorded in Shasta County on April 17, 1996. Paragraph 14 of the Judgment reads:

If any civil action or proceeding is brought by any party to this agreement (or their successors or assigns) to enforce or interpret the terms of this Stipulation and Judgment, or the provisions thereof, or the future with respect to any action between the parties concerning the rights and obligation of the parties, or the water rights and irrigation easements, then the prevailing party shall be entitled to recover reasonable attorney's fees, as well as costs incurred in connection with any such action or proceeding.

Stipulation for Entry of Judgment in Case No. 105365, ¶ 14.

Plaintiffs and Defendants are bound by the Judgment as successors. The Complaint includes a copy of the Judgment as Exhibit 3. The Cross-Complaint contains reference to the Judgment in Prayer for Relief, Item. b. Prayer for Relief, Item f. is "For cost of this action and reasonable attorneys' fees as provided for in the ROTH BARNESON v. BOYD 1996 Stipulated Judgment (see Shasta County Superior Court, Case Number 105365)." This leaves no question that Defendants/Cross-Complainants are bound by the Judgment as Defendants/Cross-Complainants themselves sought attorney's fees under ¶ 14 of the Judgment. The case as a whole concerned the rights and obligations of the parties. The entire case, including the trespass claim, falls under ¶ 14.

In order to recover attorney fees under ¶ 14, Plaintiffs must be the prevailing party.

"Prevailing party" includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

CCP § 1032(a)(4).

Here, Plaintiffs ultimately prevailed on their trespass claim, and the jury awarded a monetary judgment. Defendants/Cross-Complainants recovered no relief on the Cross-Complaint. Plaintiffs are the prevailing party and therefore entitled to reasonable attorney fees. In the Opposition, Defendants requested a reduction based on apportionment between successful and unsuccessful claims. A trial court has broad discretion when determining whether to apportion attorney's fees between successful and unsuccessful claims. *Doe v. Westmont College* (2021) 60 Cal. App. 5th 753, 767. Attorneys' fees need not be apportioned where the claims are so intertwined as to make it impracticable, if not impossible to separate the attorney's time. *Maxim Crane Works L.P. v. Tilbury Constructors* (2012) 208 Cal. App. 4th 286, 298. The claims here, both successful and unsuccessful, arose from the same set of facts and circumstances. The Court finds that all the claims were "intertwined" and that an apportionment would be inappropriate.

Plaintiffs request a total of \$281,845 which is comprised of 857.8 combined hours between Jeffery Swanson, Mark Norcross and Kat Zhao. The requested rates range from \$300 to \$350 per hour based on the attorney, work being performed, and where in the nearly seven-year timespan of the case the work was performed. The Court

finds the requested hourly rates to be reasonable for the area and the work performed. The Court is very familiar with this matter having presided over both jury trials and issued rulings on numerous Law and Motion matters. The Court has reviewed Exhibit 2 and finds that the hours expended are reasonable, including the hours billed for the future given that they will occur on this motion.

The only argument by Defendants that the Court finds compelling is regarding any reduction relates to the hours expended unsuccessfully defending motions to compel discovery filed by Defendants. The Court will reduce the award for the following entries:

- August 31, 2020 - \$1,110
- September 4, 2020 - \$1,080
- September 14, 2020 - \$300
- October 19, 2020 - \$360
- October 21, 2020 - \$60
- October 26, 2020 - \$300

This results in a total deduction of \$3,210, thereby reducing the fee award to \$278,635.

The motion is **GRANTED**. The Court finds that the 1996 Judgment allows for recovery of attorney fees on this action and that Plaintiffs are the prevailing parties. Apportionment is not appropriate intertwined nature of the claims. The hours expended and rates requested are reasonable, with the exception of the hours noted above. Attorney's fees are awarded to Plaintiffs, payable by Defendants, in the amount of \$278,635. Plaintiffs provided a proposed Order that will be modified to reflect the Court's ruling.

IN RE: SISK

CASE NUMBER: 26CV-0210590

Tentative Ruling on Petition for Change of Name: Petitioner Marisa Angeline Sisk seeks to change her name to Nina Angeline Sisk. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

SUBWAY REAL ESTATE, LLC VS. ROSARIO SABET, ET AL.

CASE NUMBER: 23CV-0202926

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on June 3, 2026 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both CRC 3.1380(c) and Local Rule of Court 3.04(A) require that a Mandatory Settlement Conference Statement be filed no later than five court days prior to the Mandatory Settlement Conference. The Mandatory Settlement Conference in this matter was to take place on June 8, 2026. No party filed a Mandatory Settlement Conference Statement. Counsel for David and Lori Howland filed a declaration that provides sufficient excuse. The Order to Show Cause is **DISCHARGED** as to David Howland, Lori Howland, and their counsel only. No other party responded to the Order to Show Cause.

Without sufficient excuse for failing to timely file a Mandatory Settlement Conference Statement, monetary sanctions are imposed in the amounts of \$250 against Plaintiff Subway Real Estate, LLC and counsel Bowman and Brooke, LLP, and \$250 against Defendant Marikit Del Rosario Sabet and counsel NewPoint Law Group, LLP. The clerk is directed to issue separate Orders of Sanctions.